

KUVAL PROJECTS PVT.LTD.

Ground Floor, Pastina Villa, Post Office NIO, Dona Paula, Goa -403004.

Date : 17th October 2022

Regd A.D / By Courier

To,

1. **M/S. PVM Associates**
B-Block, D Road, Wankhede Stadium,
Churchgate, Mumbai – 400020.

Sir/Madam,

Re: Joint Venture Agreement dated 25th April 2014 in respect of property bearing survey no. 93/3 of village Bambolim, Taluka Tiswadi-Goa admeasuring 26825 sq. mtr.

At the outset, I, Mr. Ram Daryanani, the Director M/s. Kuval Projects Pvt. Ltd. have lot of grief and regrets for the sadden demise of our close friend and business associate, the backbone of your family Late Mr. Pascoal Trindade who successfully and cordially carried out business activities with us for past several years.

I, Mr. Ram Daryanani, the Director M/s. Kuval Projects Pvt. Ltd. due to the situation arise due to the untimely sad demise of late Mr. Pascoal, I, would like to address you as under:

1. I, Mr. Ram Daryanani and Late Mr. Pascoal, were colleagues and associates since 1990 for the construction and development of a project “Aldeia-de-Goa” situated at village Bambolim being developed by M/s. Goan Real Estate Construction Pvt. Ltd.



1. In the year 2012-2013, I, Mr. Ram Daryanani was in look out for a business proposal viz. a construction project in the vicinity of the above referred project i.e. Bambolim and therefore approached late Mr. Pascoal who showed the property i.e. survey No. 93/3 at village Bambolim, Goa, held by M/s PVM Associates, an AOP of Late Mr. Pascoal Trindade, Mr. Vikram Shah and Mr. Muralidhar Sadarangani.
2. After due discussion and negotiations held alongwith Late Mr. Pascoal, Mr. Vikram Shah and Mr. Murlidhar Sadarangani, I, Mr. Ram Daryanani approved the property for joint venture development upon following representations by them and agreed for joint development of the said property at the terms and conditions mutually agreed by and between them. For the above purpose, the broad representations made by Late Mr. Pascoal . Mr. Vikram Shah and Mr. Murlidhar Sadarangani are as under:
 - i) That the said property was purchased vide sale deed dated 26/04/2006 by Late Mr. Pascoal Trindade in the year 2006 in the name of Mr. Pascoal Trindade being "a Goan." with the funding provided by Mr. Vikram Shah and Mr. Murlidhar Sadarangani and one M/s. Loonkar Developer Pvt. Ltd.
 - ii) That Late Mr. Pascoal thereafter got deleted names of certain entities wrongly entered in the Form I & XIV of the revenue records by filing of civil suit and obtaining decree for the deletion of the names of the said entities.
 - iii) That thereafter the local villagers had filed various petitions before the Hon'ble High Court which were defended jointly by Late Mr. Pascoal Trindade and Mr. Vikram Shah and all the petitions were dismissed and thereafter SLP filed by the villagers in the Hon'ble Supreme Court also was dismissed rendering clear and marketable title to the said property.



- iv) That upon obtaining clear and marketable title Late Mr. Pascoal Trindade and Vikram Shah obtained various clearances viz conversion sanad, TCP license, clearance from MOEF and Health Department, Construction license from the Village Panchayat etc.
 - v) That vide an Article Of Association dated 01/04/2013 viz. M/s. PVM Associates, an AOP agreement has been executed by and between the Late Mr. Pascoal Trindade and Mr. Vikram Shah and Mr. Murlidhar Sadarangani wherein Late Mr. Pascoal Trindade have contributed the said property to the AOP surrendering his personal rights, titles, claims and interest of whatsoever nature in respect of the said property i.e. survey No. 93/3 alongwith survey No. 93/4 of the village Bambolim, Taluka Tiswadi, Goa.
 - vi) That the said property has clear and marketable title and if any claims have made by the villagers at any time the same shall be settled and cleared by Late Mr. Pascoal Trindade and Mr. Vikram Shah at their cost.
 - vii) All the representations made above were incorporated in the JV agreement which was executed by Kuval Projects Pvt. Ltd. with PVM Associates through its associates (1) Late Mr. Pascoal Trindade, (2) Mr. Vikram Shah and (3) Mr. Murlidhar Sadarangni.
3. Subsequently Kuval Projects Pvt. Ltd. entered into a Joint Venture Agreement (JVA) dated 25th April 2014 with PVM Associates for the purpose of development and construction on the said property more particularly described in the schedule to the said JVA upon the terms and conditions set out in the said agreement.
4. That the Kuval Projects Pvt. Ltd. have paid an amount of Rs. 2,21,00,000/- (Rupees Two Crores Twenty One Lakhs Only) to PVM



Associates as provided in the said JVA as and by way of non-interest-bearing refundable deposit.

5. That after certain modifications in the plans and upon obtaining approval from the concerned authorities, the construction on the said property commenced in the later part of the year 2015 and continued the same till 2020 by which time 60% of the construction was completed.
6. That Kuval Projects Pvt. Ltd. had to abandon all the construction activities on the said property due to an "injunction order" dated 13/03/2020 issued by Hon'ble Civil Court at Panaji, Goa in the Declaration Suit being Suit no. 52/2013/A dated 04/11/2013 filed by the Comunidade of Bambolim against Late Mr. Pascoal Trindade and Mrs. Albertina Trindade being Defendant Nos. 1 and 2 in the said suit as their names were only reflected as owners in the revenue record.
7. That it is pertinent to note that in accordance with clause 4f of the said Agreement dated 25th April 2014, it was the responsibility of the Vendors / Associates therein to resolve any interferences/dispute by the Villagers in respect of the said property at their own cost.
8. That I, Mr Ram Daryanani, had contacted late Mr Pascoal Trindade several times to expedite the process of settling the said litigation enabling to continue and restart the stalled development activities.
9. That upon and after lot of persuasion by Mr. Vikram Shah and Mr. Murlidhar Sadarangani, Late Mr. Pascoal Trindade agreed to settle the disputes raised by Comunidade of Bambolim amicably and requested Mr. Vikram Shah to negotiate the settlement terms with the Comunidade of Bambolim which terms were finally and mutually agreed by the parties concerned and accordingly a consent term draft was



prepared and both the parties in the said suit viz. Comunidade of Bambolim and Late Mr. Pascoal Trindade alongwith Mrs. Albertina Trindade put their signatures of approval on the same.

10. That prior to the demise of Mr Pascoal Trindade had forwarded the draft of approved consent terms to myself. However due to intervening Covid pandemic and due to the untimely demise of Mr Pascoal Trindade the same could not be pursued further viz. obtaining various approvals from the Administrator of Comunidade, Tribunal of Comunidade and Revenue Dept , Govt. of Goa. The consent terms remained yet to be filed before the Hon'ble Court.

11. After untimely demise of Late Mr. Pascoal Trindade, I, Ram Daryanani contacted Mr. Vikram Shah and Mr. Murlidhar Sadarangani to enquire the status of the said suit / filing of consent terms. It was informed by Mr. Vikram Shah that as funding is required to fulfil the terms and conditions of the draft consent terms and other related expenses and therefore prior to the demise of Mr. Pascoal Trindade had discussed and negotiated to sell the other property viz. property bearing survey no. 93/4 of village Bambolim, Taluka Tiswadi belonging to M/s. PVM Associates with one M/s. Varniraj 100Tech Infra Pvt. Ltd. and had envisaged to utilise the funding received from them to fulfil the terms of the consent terms and to meet other related expanses get the said property cleared.

12. That Mr. Vikram Shah further informed that the intending purchasers / Director of M.s Varniraj 100Tech Infra Pvt. Ltd., Mr. Dilipkumar Sakhwala who was identified by Late Mr. Pascoal was asking for the confirmation of the sale of other said property viz. 93/4 as aforesaid from the surviving legal heirs of Late Mr. Pascoal Trindade being his wife Mrs. Albertina Trindade and son Mr. Riva Trindade but however in spite of



repeated request and plea by all concerned including the legal person handling the matters i.e. Adv. Mr. Raunak Rao they are not responding and/or coming forward to co-operate and to attend or to pursue the proceedings pending before the Hon'ble Courts and also to sign various documents as required by the intending purchaser without assigning any reason whatsoever.

13. That upon and after Mr. Vikram Shah failing in his attempts to avail the co-operation from the Mrs. Albertina Trindade and Mr. Riva Trindade requested me to directly contact with the family members of late Mr Pascoal. I will not hesitate to state here that I, had a very close and cordial relationship for more than 30 years with Late Mr. Pascoal and had tried several times to pursue the matter with his son Mr. Riva Trindade. I, regret to say inspite of my repeated requests to Mrs. Albertina Trindade and Mr. Riva Trindade have not come forward to do any act to resolve the matters which requires urgency viz. granting the confirmation to the identified purchaser and executing the consent terms etc. and thereby not acting to clear the title of the said property resulting into stalling of all the activities including the construction on the said property causing huge losses to my company M/s. Kuval Projects Pvt. Ltd.

14. That Kuval Projects Pvt. Ltd., till date have invested substantial funds to develop and almost 60% of the project as envisaged which is lying idle for none of their fault thereby causing huge business losses - interest loss – opportunity loss – loss of profit etc.

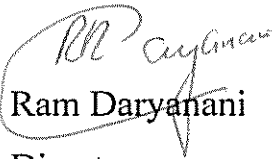
15. That it is imperative, as legal heirs of the Late Mr. Pascoal Trindade, that Mrs. Albertina Trindade and his son Mr. Riva Trindade to come forward to do all acts necessary to give effect to the said Joint Venture Agreement dated 25th April 2014.

16. Therefore I, request you to expedite the process of giving effect to the said Joint Venture Agreement dated 25th April 2014. Further I, appeal to Mrs. Albertina Trindade and Mr. Riva Trindade to perform and carry out all the said requisite acts within 15 days from the receipt of this letter, else it shall be deemed that yourselves are unwilling to perform your part of the said Agreement dated 25th April 2014 and in which event M/s Kuval Projects Pvt. Ltd. will have no option but to take appropriate measures to make good of their investments with adequate compensations.

Thanking You,

Yours faithfully

For Kuval Projects Pvt. Ltd.


Ram Daryanani

Director.

C.C. to:

1) **Albertina Trindade**

Palbrika Mansion
House No. 21/23/A,
Near Rosary School, PO. NIO,
Dona Paula, Goa. 403004

2) **Riva Trindade**

Palbrika Mansion
House No. 21/23/A,
Near Rosary School, PO. NIO,
Dona Paula, Goa. 403004

3). **Vikram Shah**

28, Capri, 9, Manav Mandir Road,
Walkeshwar, Malabar Hill Mumbai – 40006.

4) **Murlidhar Sadarangani**

S-3, Eden Hall, Dr. Annie Besant Road,
Worli, Mumbai – 400018